

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 31

20STCV48797

KATHERINE HILL vs KENNETH HESLEP, et al.

May 4, 2021

8:30 AM

Judge: Honorable Yolanda Orozco

Judicial Assistant: H. Garcia

Courtroom Assistant: T. de la Paz

CSR: None

ERM: None

Deputy Sheriff: None

APPEARANCES:

For Plaintiff(s): Ashley Parris (Telephonic) ; Carrie Goldberg (Video)

For Defendant(s): Joseph Messina by Krista L. Baughman (Video); Kelli L. Sager by Abigail Zeitlin (Video); JENNIFER VAN LAAR by Karin M. Sweigart (Video)

NATURE OF PROCEEDINGS: Hearing on Motion for Attorney Fees by Defendant Joseph Messina

The Court's tentative ruling is posted online for parties to review.

The matter is called for hearing.

All parties appearing for today's hearing submit to the Court's tentative ruling in open Court.

The Court adopts its tentative ruling as the final order of the Court as follows:

The Motion for Attorney Fees -[Res ID: _8673] filed by Joseph Messina on 04/01/2021 is
Granted in Part.

MOTION FOR ATTORNEY FEES IS GRANTED, IN PART.

Background

On December 22, 2020, Plaintiff Katherine Hill filed the instant action against Defendants Kenneth Heslep; Jennifer Van Laar; Joseph Messina; Mail Media, Inc. ("the Daily Mail"); Salem Media Group, Inc. ("Salem Media"); and Does 1 through 50. The Complaint asserts causes of action for:

(1) Action Based on Civil Code Section 1708.85 (against Heslep, Van Laar, the Daily Mail; and Salem Media);

(2) Civil Conspiracy to Violate Civil Code Section 1708.85;

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(3) Intentional Infliction of Emotional Distress (against Heslep); and

(4) Action Based on Bus. Prof. Code Section 17200 (against the Daily Mail and Salem Media).

On February 4, 2021, Defendant Messina (hereinafter “Defendant”) filed an anti-SLAPP motion seeking to strike the entirety of Plaintiff’s Complaint. Defendant’s anti-SLAPP was set for hearing on March 11, 2021. On February 26, 2021, Plaintiff dismissed Defendant without prejudice.

Defendant now seeks attorney fees and costs in the amount of \$37,586.44 in connection with his anti-SLAPP motion and the instant motion for attorney fees.

Legal Standard

Pursuant to Code of Civil Procedure section 425.16(c), a prevailing defendant is entitled to recover attorneys’ fees and costs associated with the motion. Under CRC 3.1702 and CRC 8.104, a request for attorneys’ fees must be made within 60 days of service of the notice of entry of judgment. A defendant may only recover fees and costs related to the motion to strike. (Lafayette Morehouse, Inc. v. Chronicle Publishing Co. (1995) 39 Cal.App.4th 1379, 1383.) This includes fees associated with bringing the motion for fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141 (“an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16.”).) Additionally, “[a]ny fee award must also include those incurred on appeal. [Citation.]” (Trapp v. Naiman (2013) 218 Cal.App.4th 113, 122.)

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) The Court “need not simply award the sum requested. To the contrary, ascertaining the fee amount is left to the trial court’s sound discretion.” (Id.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Discussion

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Defendant seeks attorney fees and costs in the amount of \$37,586.44 in connection with his anti-SLAPP motion and the instant motion for attorney fees. Plaintiff has failed to file an opposition to the instant motion or the underlying anti-SLAPP.

Prevailing Defendant

“[W]here the plaintiff voluntarily dismisses an alleged SLAPP suit while a special motion to strike is pending, the trial court has discretion to determine whether the defendant is the prevailing party for purposes of attorney's fees under Code of Civil Procedure section 425.16, subdivision (c).’ [Citation.] Moreover, ‘In making that determination, the critical issue is which party realized its objectives in the litigation. Since the defendant's goal is to make the plaintiff go away with its tail between its legs, ordinarily the prevailing party will be the defendant. The plaintiff, however, may try to show it actually dismissed because it had substantially achieved its goals through a settlement or other means, because the defendant was insolvent, or for other reasons unrelated to the probability of success on the merits.’ [Citation.]” (Pfeiffer Venice Properties v. Bernard (2002) 101 Cal.App.4th 211, 217.)

“[B]ecause a defendant who has been sued in violation of his or her free speech rights is entitled to an award of attorney fees, the trial court must, upon defendant's motion for a fee award, rule on the merits of the SLAPP motion even if the matter has been dismissed prior to the hearing on that motion.” (Id. at 218.)

In ruling on Defendant’s anti-SLAPP, the Court stated, in relevant part:

On February 26, 2021, Plaintiff dismissed Defendant Joseph Messina without prejudice. Accordingly, the motion is moot insofar as it seeks to strike Plaintiff’s Complaint.

However, Defendant may bring a motion for attorney fees and costs under Section 425.16(c).

“[T]he trial court has jurisdiction to award attorney fees to a prevailing defendant whose SLAPP motion was not heard solely because the matter was dismissed before defendants obtained a ruling on the SLAPP motion.” (Pfeiffer Venice Properties v. Bernard (2002) 101 Cal.App.4th 211, 215.)

If Defendant brings a motion for attorney fees and costs, he will be “entitled to a ruling on the merits of [the special motion to strike], the result of which will necessarily determine [Defendant’s] right to attorney fees under [C.C.P. §425.16(c)].” (Id. at 218-219.)

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Accordingly, should Defendant choose to bring a motion for attorney fees, the Court will deem the Anti-SLAPP filed on February 4, 2021 a part of Defendant's moving papers. Plaintiff shall be entitled to file two memoranda in Opposition, one addressing the merits of the attorney fee motion and another addressing the merits of the Anti-SLAPP. Defendant shall also be entitled to file two memoranda in Reply. All briefing shall be filed per Code.

(March 11, 2021 Minute Order.)

Anti-SLAPP Motion on the Merits

Courts employ a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) To invoke the protections of the statute, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (*Ibid.*) From this fact, courts "'presume the purpose of the action was to chill the defendant's exercise of First Amendment rights. It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.'" (*Ibid.*) In determining whether the plaintiff has carried this burden, the trial court considers "the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., § 425.16, subd. (b)(2); see *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (*Soukup*).)

First Prong: Protected Activity

An anti-SLAPP motion requires the moving party to bear the initial burden of establishing a prima facie showing that the plaintiff's cause of action arises from the defendant's free speech or petition activity. (*Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 894.)

CCP § 425.16(e) states, "As used in this section, 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest."

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“In determining “whether the challenged claims arise from acts in furtherance of the defendants’ right of free speech or right of petition under one of the categories set forth in section 425.16, subdivision (e). [Citation.] ‘[w]e examine the principal thrust or gravamen of a plaintiff’s cause of action to determine whether the anti-SLAPP statute applies.’” [Citation.] The “gravamen is defined by the acts on which liability is based, not some philosophical thrust or legal essence of the cause of action.” [Citation.] In other words, “for anti-SLAPP purposes [the] gravamen [of plaintiff’s cause of action] is defined by the acts on which liability is based.” [Citation.]” (Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 111.)

“[A] claim is not subject to a motion to strike simply because it contests an action or decision that was arrived at following speech or petitioning activity, or that was thereafter communicated by means of speech or petitioning activity. Rather, a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060.)

Defendant argues that the complained of activity is protected activity under both Section 425.16(e)(3) and (4).

Any Written or Oral Statement or Writing Made in a Place Open to the Public or a Public Forum in Connection with an Issue of Public Interest & Any Other Conduct in Furtherance of the Exercise of the Constitutional Right of Free Speech in Connection with a Public Issue or an Issue of Public Interest

“Subdivision (e) of [425.16] includes four separate categories of acts which qualify for treatment under the section. The first two categories pertain to statements made in connection with proceedings “before” or “in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” The third category identifies matters of “public interest” addressed in circumstances traditionally protected by the right to freedom of speech; i.e., statements “made in a place open to the public or a public forum in connection with an issue of public interest.” Category Four provides a catch-all for “any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Italics added.)” (Lieberman v. KCOP Television, Inc. (2003) 110 Cal.App.4th 156, 164.)

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“A cause of action arises from protected activity within the meaning of section 425.16, subdivision (e)(4) if the plaintiff’s claims are predicated on conduct that is (1) in furtherance of the right of free speech, and (2) in connection with a public issue or issue of public interest.’ [Citation.] “An act is in furtherance of the right of free speech if the act helps to advance that right or assists in the exercise of that right.” [Citations.]” (Collier v. Harris (2015) 240 Cal.App.4th 41, 51.)

“The California Supreme Court held that Web sites accessible to the public are “public forums” for the purposes of the anti-SLAPP statute. [Citation.] “Cases construing the term “public forum” as used in section 425.16 have noted that the term “is traditionally defined as a place that is open to the public where information is freely exchanged.” [Citation.] “Under its plain meaning, a public forum is not limited to a physical setting, but also includes other forms of public communication.” [Citation.]” (Kronemyer v. Internet Movie Database Inc. (2007) 150 Cal.App.4th 941, 950.) A radio program accessible to the public is considered a public forum for the purposes of the anti-SLAPP statute. (Seelig v. Infinity Broadcasting Corp. (2002) 97 Cal.App.4th 798, 807-808.)

“It is beyond dispute that reporting the news is an exercise of free speech. [Citations.] California courts have also held pre- and post-reporting conduct, such as investigating, newsgathering, writing, and interviewing is conduct in furtherance of free speech. [Citations.] As in Lieberman, courts have held defendants may satisfy the showing they were engaged in conduct in furtherance of free speech under section [425.16], even when their conduct was allegedly unlawful. [Citations.]” (Simmons v. Bauer Media Group USA, LLC (2020) 50 Cal.App.5th 1037, 1044–1045.)

“[T]he constitutional guarantee [of free speech] has its fullest and most urgent application precisely to the conduct of campaigns for political office.” [Citation.] Indeed, “[t]he right to speak on political matters is the quintessential subject of our constitutional protections of the right of free speech. “Public discussion about the qualifications of those who hold or who wish to hold positions of public trust presents the strongest possible case for applications of the safeguards afforded by the First Amendment.”” [Citation.] “The character and qualifications of a candidate for public office constitutes a ‘public issue or public interest’” for purposes of section 425.16. [Citation.]” (Collier, supra, 240 Cal.App.4th at 52.)

The Complaint alleges: “On October 17, 2019, Messina posted an article on his blog claiming he had, ‘received over 700 images, pictures, texts, and notes on the escapades of one Katie Hill, both before and after her election.’ Despite receiving the non-consensually distributed nude photographs of Hill, Messina did not report the illegal conduct to law enforcement. Instead he

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used the existence of the photographs as ammunition to attack Hill on his radio show, ‘The Real Side.’” (Complaint ¶ 71.) “Defendant Messina received the blackmail material and publicized its existence in order to build anticipation for its release.” (Complaint ¶ 160.) The preceding allegations are the sole allegations of Defendant’s conduct in the Complaint.

Defendant argues that his blog post was a written statement published on a website, a public forum. Defendant asserts that the oral statements made on his radio program were similarly made in the public forum of radio. Defendant contends that moreover, his statements, that he had seen photographs suggesting that a Congresswoman had engaged in an extramarital sexual relationship with a paid staffer in potential violation of House rules, is, without a question, a matter of public concern.

The Court finds that the gravamen of Plaintiff’s Complaint against Defendant constitutes protected activity under Sections 425.16(e)(3) and (4). Here, the conduct complained of, Defendant’s statements about the photographs that were in his possession, are “statements” or “other conduct in furtherance of the right to free speech” for the purposes of the anti-SLAPP analysis. The statements were also made in public forums, on a website and on a radio program accessible to the public.

As held by the authorities above, “[t]he character and qualifications of a candidate for public office constitutes a ‘public issue or public interest’” for purposes of section 425.16. [Citation.]” (Collier, supra, 240 Cal.App.4th at 52.) Here, the statements about the intimate images spoke to Plaintiff’s character and qualifications for her position, as they allegedly depicted Plaintiff with a campaign staffer whom she was alleged to have had a sexual affair with. (Complaint ¶ 71, fn. 5.) Accordingly, the statements were a matter of ‘public issue or public interest.’

Based on the foregoing, the Court finds that Defendant has prevailed as to the first prong.

Second Prong: Probability of Success on the Merits

On the second prong of the analysis, courts employ a “summary-judgment-like” procedure, “accepting as true the evidence favorable to the plaintiff and evaluating the defendant’s evidence only to determine whether the defendant has defeated the plaintiff’s evidence as a matter of law.” (Gerbosi v. Gaims, Weil, West & Epstein, LLP (2011) 193 Cal.App.4th 435, 444.) In other words, the Court does not assess credibility, and the plaintiff is not required to meet the preponderance of the evidence standard. The Court accepts as true the evidence favorable to the plaintiff, who need only establish that his or her claim has “minimal merit” to avoid being stricken as a SLAPP. (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291.) The

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plaintiff is required to present facts which would, if proved at trial, support a judgment in the plaintiff's favor. (Code of Civ. Proc., § 425.16(b); Shekhter v. Financial Indemnity Co. (2001) 89 Cal.App.4th 141, 150-151.)

“[A]n action may not be dismissed under this statute if the plaintiff has presented admissible evidence that, if believed by the trier of fact, would support a cause of action against the defendant.” (Taus v. Loftus (2007) 40 Cal.4th 683, 729.) “In making this assessment, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, and must also examine whether there are any constitutional or nonconstitutional defenses to the pleaded claims and, if so, whether there is evidence to negate any such defenses. [Citation.]” (McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 108.)

“[P]roperly submitted admissible evidence should be considered, and a court evaluating a probability of success should draw any non-speculative inferences favorable to the plaintiff. [Citations.]” (Monster Energy Co. v. Schechter (2019) 7 Cal.5th 781, 795.)

Second Cause of Action for Civil Conspiracy to Violate Civil Code Section 1708.85

“Civil conspiracy is not an independent tort. Instead, it is “a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. [Citation.] By participation in a civil conspiracy, a coconspirator effectively adopts as his or her own the torts of other coconspirators within the ambit of the conspiracy. [Citation.] In this way, a coconspirator incurs tort liability co-equal with the immediate tortfeasors.” [Citation.]

The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. [Citation.]” (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211–212.)

“[F]or conspiracy liability, the conspiring defendants must have actual knowledge that a tort is planned and concur in the scheme with knowledge of its unlawful purpose. [Citation.] Knowledge of the planned tort must be combined with intent to aid in its commission. [Citation.] “An agreement may be tacit as well as express. [Citation.] A conspirator's concurrence in the scheme ‘may be inferred from the nature of the acts done, the relation of the parties, the interests of the alleged conspirators, and other circumstances.’” [Citation.]” (Navarrete v. Meyer (2015) 237 Cal.App.4th 1276, 1292.)

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“A conspirator’s concurrence in the scheme ‘may be inferred from the nature of the acts done, the relation of the parties, the interests of the alleged conspirators, and other circumstances.’ [Citation.]” (AREI II Cases (2013) 216 Cal.App.4th 1004, 1024.)

Defendant argues that Plaintiff cannot carry her burden establishing a probability of success on the merits as to her cause of action for civil conspiracy to violate Civil Code section 1708.85 against Defendant. Defendant asserts that to defeat this motion, Plaintiff is required to offer competent and admissible evidence sufficient to establish all of the following: a) the release of the Photographs violated California Civil Code § 1708.85; (b) Defendant had actual knowledge that Defendant Heslep intended to release the Photographs, in violation of California Civil Code § 1708.85; (c) Defendant intentionally joined and agreed to Heslep’s plan, with knowledge of and intent to aid in its unlawful purpose; and (d) that Defendant’s intentional joinder was undertaken for the purpose of injuring Plaintiff. Defendant contends that Plaintiff cannot meet this standard, by a long shot.

Defendant argues that as confirmed by the evidence, Defendant did not form or operate in any conspiracy to distribute sexually explicit materials of Plaintiff. Defendant asserts that indeed, the Complaint never suggests the Defendants had any agreement prior to Defendant Heslep’s dissemination of the “computer file containing more than seven hundred images.” (Complaint ¶ 69.) Defendant contends that instead, the Complaint suggests “[t]he conspiracy was formed when Defendant Heslep distributed an electronic file containing blackmail material regarding Plaintiff.” (Complaint ¶ 156.) Defendant argues that as apparent from the face of the revenge porn statute, there is “no liability” when “distributed material was previously distributed by another person.” (Civ. Code § 1708.85(c)(6).) Defendant asserts that this factual admission is fatal not only to Plaintiff’s claim of conspiracy against Messina, but also to any concept that he could have liability for the underlying tort he is claimed to have conspired to commit.

Defendant contends that similarly fatal to a revenge porn claim against Defendant is the fact that there can be no liability under California Civil Code § 1708.85(c)(4) when the “distributed material constitutes a matter of public concern.” Defendant argues that even if Defendant had conspired with Heslep to release the photographs (which he did not), Defendant would still not be liable because the photographs concern alleged inappropriate behavior by a sitting member of Congress, which as discussed above is a clear matter of public concern – indeed, one that eventually led the Plaintiff to resign her office.

Defendant finally asserts that even if Plaintiff had not foreclosed her own claims by her Complaint allegations, Defendant has provided competent and admissible testimony that the photographs came to him by way of an anonymous email, that he has never met or

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communicated with Defendant Heslep, that he has never discussed the Photographs with Defendant Van Laar prior to her publication of her articles, and that he never distributed the photographs to anyone. (Messina Decl. ¶ 2–6.)

The Court finds that Plaintiff has failed to carry her burden establishing a probability of success on the merits as to her second cause of action for civil conspiracy to violate Civil Code section 1708.85 against Defendant. As noted above, Plaintiff is required to present facts which would, if proved at trial, support a judgment in Plaintiff's favor. (Code of Civ. Proc., § 425.16(b); Shekhter, supra, 89 Cal.App.4th at 150-151.) "[P]laintiff must show both that the claim is legally sufficient and there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. [Citations.] In making this assessment, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, and must also examine whether there are any constitutional or nonconstitutional defenses to the pleaded claims and, if so, whether there is evidence to negate any such defenses. [Citation.]" (McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 108.) As noted above, Plaintiff has failed to oppose the instant motion. Accordingly, Plaintiff has failed to submit any evidentiary support for her pleaded claims thereby failing to establish a probability of success on the merits.

Based on the foregoing, the Court finds that Defendant has prevailed as to the second prong and is thus a prevailing defendant for the purposes of determining whether he is entitled to attorney fees.

Hourly Rate

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [her] court." (Ibid.)

Defendant seeks to recover fees for three attorneys, one law clerk, and one paralegal that billed time in connection with Defendant's anti-SLAPP. Their hourly rates are as follows:

- Harmeet Dhillon: \$1,300/hour
- Krista L. Baughman: \$750/hour
- Karin M. Sweigart: \$600/hour
- Holly Toschi, paralegal: \$275/hour

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· Alexis Shovel, law clerk: \$250/hour

For each attorney, paralegal, and law clerk, attorney Krista L. Baughman attests to her experience and reasonableness of the rates. (Baughman Decl. ¶ 4-7, 11-15.)

The Court finds that the rates requested by Defendant are reasonable and commensurate with or less than rates charged by attorneys with comparable skill and expertise.

Reasonable Hours Incurred

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

While not per se objectionable, block billing can exacerbate the vagueness of an attorney fee request and support a court’s finding that time entries were inflated and non-compensable. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1325-1326.)

Defendant provides detailed billing records for the anti-SLAPP motion. (Baughman Decl., Exh. 2.) Defendant seeks a total of \$21,386.97 in attorney fees and \$71.97 in costs related to the anti-SLAPP motion and an additional \$16,067.50 in attorney fees and \$60 in costs related to the fee motion.

Defendant argues that this was a unique case. Defendant asserts that the case involved a high profile plaintiff, high profile defendants, and high stakes claims. Defendant contends that in addition to Plaintiff being a former Member of Congress, Defendant is a nationally syndicated radio talk show host, heard in 42 states and 38 countries. Defendant argues that Plaintiff’s claims directly implicated First Amendment free speech concerns involving elected public officials and the journalists who report about them. Defendant asserts that the case additionally involved a relatively new law, Civil Code Section 1708.85, which has yet to be seriously tested in California courts and presents issue of first impression, particularly in an anti-SLAPP posture. Defendant contends that this litigation has been the subject of intense speculation in the press and with legal

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commentators, requiring specialized attention from experienced counsel.

Defendant argues that Counsel and law clerk work comprised the bulk of the work in this matter. (Baughman Decl. ¶ 17.) Defendant asserts that DLG's representation of Defendant was conducted efficiently and at reasonable costs. Defendant contends that for overlapping issues between codefendants, counsel did not duplicate research, but allocated research hours evenly between defendants in an effort to keep costs low. (Sweigart Decl. ¶ 5.) Defendant argues that this led to significant cost savings in what otherwise would have been a much more expensive motion. (Sweigart Decl. ¶ 5.)

The Court finds that the fees sought in relation to the instant motion are excessive and therefore unreasonable. Defendant seeks \$16,067.50 in fees related to this motion consisting of 20.8 hours researching and drafting the instant motion billed at a rate of \$600 per hour plus 3.5 hours for time spent on the motion by paralegals billed at a rate of \$275/hour. The Court finds this excessive given that counsel's firm billed a total of 38.2 hours for the anti-SLAPP itself, a motion that counsel concedes involved novel issues. The Court finds it unreasonable for counsel to have spent 20.8 hours on a simple fee motion where no novel issues were presented. The Court thus reduces the amount of fees requested for the instant motion by \$7,680.00, representing a total of 12.8 hours billed at a rate of \$600 per hour.

As to the fees related to the anti-SLAPP motion itself, the Court finds the amount of fees requested is reasonable and all fees were necessarily incurred.

Having analyzed the instant motion and the anti-SLAPP motion, the Court determines that a reasonable lodestar in this case, to limit any excessive fees, is \$29,906.44.

Conclusion

Defendant's motion for attorney fees is GRANTED in part. The Court awards Defendant attorney fees and costs in the reduced amount of \$29,906.44.

Defendant is to give notice.

The parties are strongly encouraged to attend all scheduled hearings virtually or by audio. Effective July 20, 2020, all matters will be scheduled virtually and/or with audio through the Court's LACourtConnect technology. The parties are strongly encouraged to use LACourtConnect for all their matters. All social distancing protocols will be observed at the Courthouse and in the courtrooms.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 31

20STCV48797

KATHERINE HILL vs KENNETH HESLEP, et al.

May 4, 2021

8:30 AM

Judge: Honorable Yolanda Orozco

Judicial Assistant: H. Garcia

Courtroom Assistant: T. de la Paz

CSR: None

ERM: None

Deputy Sheriff: None